

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE JOINT
7 RESOLUTION NO. 1055

By: Osburn of the House

and

Daniels of the Senate

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11 COMMITTEE SUBSTITUTE

12 [Secretary of State - refer to people - proposed
13 amendment - Section 4 of Article VI - Constitution
14 of the State of Oklahoma - new Section 36 - State
15 Superintendent of Public Instruction - appointed
16 position - appointment - removal - qualifications -
17 ballot title - filing]

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20 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
21 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

22 SECTION 1. The Secretary of State shall refer to the people for
23 their approval or rejection, as and in the manner provided by law,
24

1 the following proposed amendment to Section 4 of Article VI of the
2 Constitution of the State of Oklahoma to read as follows:

3 Section 4. A. The term of office of the Governor, Lieutenant
4 Governor, State Auditor and Inspector, Attorney General, State
5 Treasurer, and Commissioner of Labor ~~and Superintendent of Public~~
6 ~~Instruction~~ shall be four (4) years from the second Monday of
7 January next after their election. The said officers shall be
8 eligible to immediately succeed themselves except as otherwise
9 provided in this section.

10 B. 1. No person shall be eligible to serve as Governor for a
11 period of time in excess of eight (8) years. Such years need not be
12 consecutive. Any years served by a person serving as Governor for
13 less than a full term to fill a vacancy in such office shall not be
14 included in the eight-year limitation set forth herein.

15 2. Notwithstanding the provisions of this amendment, any person
16 serving as Governor at the time of passage of this amendment shall
17 be eligible to complete the term of office to which he or she was
18 elected but shall not be eligible to serve as Governor for a period
19 of time in excess of eight (8) years, excluding years served for
20 less than a full term to fill a vacancy in such office. The
21 provisions of this paragraph shall apply regardless of whether such
22 years were served prior to or after passage of this amendment.

23 C. No person shall be eligible to serve as Lieutenant Governor,
24 State Auditor and Inspector, Attorney General, State Treasurer,

1 Commissioner of Labor or Superintendent of Public Instruction for a
2 period of time in excess of eight (8) years. Such years need not be
3 consecutive. Any years served by a person elected or appointed to
4 serve less than a full term to fill a vacancy in any such office
5 shall not be included in the limitations set forth herein. Any
6 person serving in such position at the time of passage of this
7 amendment shall be eligible to complete the term for which he or she
8 has been elected and shall be eligible to serve an additional eight
9 (8) years thereafter, notwithstanding the provisions of this
10 amendment.

11 D. The Legislature is hereby authorized to enact laws to
12 implement the provisions of subsections B and C of this section.

13 E. Beginning November 1, 2034, the position of State
14 Superintendent of Public Instruction shall be appointed in
15 accordance with Section 36 of Article VI of the Oklahoma
16 Constitution.

17 SECTION 2. The Secretary of State shall refer to the people for
18 their approval or rejection, as and in the manner provided by law,
19 the following proposed amendment to the Constitution of the State of
20 Oklahoma by adding a new Section 36 to Article VI thereof, to read
21 as follows:

22 A. Beginning November 1, 2034, the State Superintendent of
23 Public Instruction shall be appointed using the following process:

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1 1. The Oklahoma State Board of Education (OSBE) shall gather
2 applications, conduct interviews of applicants, and shall provide a
3 list of not less than three, and not more than five, candidates for
4 the Governor to choose from for the position of State Superintendent
5 of Public Instruction. The Governor shall appoint one of the
6 candidates from the list to serve as the State Superintendent of
7 Public Instruction;

8 2. The Oklahoma State Senate shall vote whether to confirm the
9 Governor's appointee; and

10 3. Should the Senate fail to confirm the Governor's appointee
11 by a two-thirds (2/3) vote, then the Governor shall select a new
12 appointee from the original list of candidates.

13 B. The State Superintendent of Public Instruction may be
14 removed from office by either:

15 1. A two-thirds (2/3) vote of the members elected to and
16 constituting each chamber of the Legislature to remove the State
17 Superintendent of Public Instruction; or

18 2. By order of the Governor and two-thirds (2/3) vote of one
19 chamber of the Legislature to remove the State Superintendent of
20 Public Instruction.

21 C. The Legislature shall establish a list of qualifications for
22 the position of the State Superintendent of Public Instruction.
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1 SECTION 3. The Ballot Title for the proposed Constitutional
2 amendment as set forth in SECTIONS 1 and 2 of this resolution shall
3 be in the following form:

4 BALLOT TITLE

5 Legislative Referendum No. _____ State Question No. _____

6 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

7 This measure amends the Oklahoma Constitution in Section 4 of
8 Article 6 and adds a new Section 36. The measure creates an
9 appointment and removal process for the State Superintendent of
10 Public Instruction. The process shall consist of the Oklahoma
11 State Board of Education gathering applications, interviewing
12 applicants, preparing a list of eligible candidates to be given
13 to the Governor, the Governor selecting a candidate from the
14 list, and the Senate voting whether to confirm the Governor's
15 selection. Should the Senate fail to confirm the Governor's
16 selection by a two-thirds (2/3) vote, then the Governor shall
17 make a new selection from the original provided list. The State
18 Superintendent of Public Instruction may be removed from office
19 by a two-thirds (2/3) vote of each chamber of the Legislature,
20 or by order of the Governor and a two-thirds (2/3) vote of one
21 chamber of the Legislature. This measure also directs the
22 Legislature to develop a list of qualifications for the position
23 of State Superintendent of Public Instruction. This process
24 shall not take effect until November 1, 2034.

1 SHALL THE PROPOSAL BE APPROVED?

2 FOR THE PROPOSAL — YES _____

3 AGAINST THE PROPOSAL — NO _____

4 SECTION 4. The Chief Clerk of the House of Representatives,
5 immediately after the passage of this resolution, shall prepare and
6 file one copy thereof, including the Ballot Title set forth in
7 SECTION 3 hereof, with the Secretary of State and one copy with the
8 Attorney General.

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10 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/09/2026 - DO PASS,
11 As Amended and Coauthored.
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